

CLIC Case 0003**Country/Court:** Colombia, Constitutional Court (Corte Constitucional)**Decision number/date:** Sentencia C-177/01, 2001-02-14**Crime / Issue:** Genocide**Abstract prepared by:** Philipp Gartner

A public lawsuit of unconstitutionality was filed before the Constitutional Court of Colombia by a citizen challenging a specific phrase within Article 322A of the Penal Code, which was introduced by Law 589 of 2000. The contested provision codified the crime of genocide domestically but explicitly restricted its scope to the partial or total destruction of a national, ethnic, racial, religious, or political group "that acts within the margin of the law." The plaintiff argued that this qualification stripped illegal, unregistered, or socially marginalized groups of essential legal protections, directly violating absolute constitutional guarantees regarding the right to life, human dignity, and the principle of equality before the law. Furthermore, she raised concerns that this legal loophole would grant practical impunity for systematic atrocities disguised as "social cleansings" or the wholesale extermination of political dissidents.

Opposing arguments and interventions were subsequently submitted by various state authorities and civil society organizations, dividing opinions on the statutory restriction. The Ministry of Justice and the Fiscalía General de la Nación defended the constitutionality of the phrase, asserting that the destruction of illegal groups did not result in impunity because such acts would remain fully punishable under ordinary criminal provisions like aggravated homicide. They further argued that the state could not extend identical protections to unlawful organizations and that the clause was necessary to protect legitimate military combat operations against illegal insurgent forces. Conversely, the Procurador General de la Nación and international jurist commissions supported the lawsuit, countering that the right to life is a non-derogable, absolute guarantee that cannot be applied selectively based on the perceived lawfulness of a victim's behavior.

Regarding the preliminary matters, the Constitutional Court ("the Court") first addressed a procedural motion by the Ministry of Justice seeking an inhibitive dismissal on the grounds that the plaintiff's lawsuit was legally insufficient and inept. The Court rejected this motion, ruling that even an elementary or straightforward argument is fully admissible if it clearly and layout-wise exposes an inherent constitutional problem of unequal treatment stemming directly from the enacted text. Consequently, the Court affirmed its jurisdiction to review the substantive merits of the provision against the higher mandate of the Constitution.

Substantively, the Court examined the definition and evolution of genocide within the broader framework of International Human Rights Law and International Humanitarian Law. It observed that international obligations, such as the 1948 Genocide Convention, are seamlessly integrated into the domestic framework through the "bloque de constitucionalidad" (constitutional bloc). The Court emphasized that the prohibition of genocide constitutes a peremptory norm of international law (*ius cogens*), meaning its protective parameters are universal, absolute, and fundamentally independent of a targeted group's domestic legal status or behavioral compliance.

Finally, the Court evaluated the core constitutional principles of human dignity, equality, and the absolute inviolability of the right to life as well as the principle of *nullum crimen, nulla poena, sine lege previa, scripta et certa*. It held that the state is constitutionally mandated to protect the lives of all individuals within its territory without arbitrary discrimination or selective exclusions. The Court concluded that allowing the legal status of a group to dictate whether its systematic, intentional destruction qualifies as genocide would violate the fundamental principle of equality and create an impermissible loophole for mass atrocities, ultimately declaring the restrictive phrase unconstitutional and striking it from the penal statute.